

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Raymond P. Moore**

Civil Action No. 1:15-cv-02785-RM-NYW

COLORADO BOX COMPANY, INC.,
a Colorado corporation,

Plaintiff,

v.

VON HONNECKE, an individual,
CHASE HONNECKE, an individual, and
S & H SHEET METAL, INC., a Colorado corporation,

Defendants.

VERDICT FORM

We, the jury, unanimously agree to the answers to the following questions and return them under the instructions of this Court as our verdict in this case.

I. FINDINGS ON INFRINGEMENT

A: DIRECT INFRINGEMENT - LITERAL INFRINGEMENT

Question No. 1: Direct Infringement (Literal) – Generation 1 Return Air Filter

Boxes – Apparatus Claims

Has Plaintiff proven by a preponderance of the evidence that Defendant S & H Sheet Metal, Inc. has literally infringed claims 1, 2, 3, 4, 5, 6, 8, and/or 9 of U.S. Patent No. 8,999,029 (sometimes referred to as the '029 Patent)?

Yes ✓ No

If Yes, which claim(s)?

1, 2, 3, 4, 5, 6, 8, 9

Question No. 3: Direct Infringement (Literal) – Generation 2 Return Air Filter

Boxes – Apparatus Claims.

Has Plaintiff proven by a preponderance of the evidence that Defendant S & H Sheet Metal, Inc. has literally infringed claims 1, 2, 3, 4, 5, 6, 8, and/or 9 of the '029 patent?

Yes ✓ No

If Yes, which claim(s)?

1, 2, 3, 4, 5, 6, 8, 9

B: DIRECT INFRINGEMENT – DOCTRINE OF EQUIVALENTS

Question No. 6: Direct Infringement (Doctrine of Equivalents) – Generation 1

Return Air Filter Boxes – Apparatus Claims.

Has Plaintiff proven by a preponderance of the evidence that Defendant S & H Sheet Metal, Inc. has infringed claims 1, 2, 3, 4, 5, 6, 8, and/or 9 of the '029 patent under the doctrine of equivalents?

Yes ☒ No ☐

If Yes, which claim(s)?

1, 2, 3, 4, 5, 6, 8, 9

Question No. 8: Direct Infringement (Doctrine of Equivalents) – Generation 2

Return Air Filter Boxes – Apparatus Claims.

Has Plaintiff proven by a preponderance of the evidence that Defendant S & H Sheet Metal, Inc. has infringed claims 1, 2, 3, 4, 5, 6, 8, and/or 9 of the '029 patent under the doctrine of equivalents?

Yes ✓ No

If Yes, which claim(s)?

1, 2, 3, 4, 5, 6, 8, 9

Return Air Filter Boxes – Apparatus and Method Claims.

Has Plaintiff proven by a preponderance of the evidence that one or more

Yes ✓ No

If yes, which Defendant(s) and which claim(s)?

Defendant Von Honnecke and claim(s) _____

Defendant Chase Honnecke and claim(s) 1, 2, 3, 4, 6, 8, 9, 17, 18

Defendant S & H Sheet Metal, Inc. and claim(s) 1, 2, 3, 4, 6, 8, 9, 17, 18.

C: INDIRECT INFRINGEMENT – CONTRIBUTORY INFRINGEMENT

Question No. 11: Indirect Infringement (Contributory Infringement) – Generation 1

Return Air Filter Boxes – Apparatus and Method Claims.

Has Plaintiff proven by a preponderance of the evidence that one or more Defendant contributorily infringed claims 1, 2, 3, 4, 5, 6, 8, 9, 17, 18, and/or 20 of the '029 Patent?

Yes ✓ No

If yes, which Defendant(s) and which claim(s)?

Defendant Von Honnecke and claim(s) 1, 2, 3, 4, 5, 6, 8, 9, 17, 18, 20.

Defendant Chase Honnecke and claim(s) 1, 2, 3, 4, 5, 6, 8, 9, 17, 18, 20.

Defendant S & H Sheet Metal, Inc. and claim(s) 1, 2, 3, 4, 5, 6, 8, 9, 17, 18, 20.

Question No. 12: Indirect Infringement (Contributory Infringement) – Generation 2

Return Air Filter Boxes – Apparatus and Method Claims.

Has Plaintiff proven by a preponderance of the evidence that one or more Defendant contributorily infringed claims 1, 2, 3, 4, 5, 6, 8, 9, 17, 18, and/or 20 of the '029 Patent?

Yes ✓ No

If yes, which Defendant(s) and which claim(s)?

Defendant Von Honnecke and claim(s) 1, 2, 3, 4, 5, 6, 8, 9, 17, 18, 20.

Defendant Chase Honnecke and claim(s) 1, 2, 3, 4, 5, 6, 8, 9, 17, 18, 20.

Defendant S & H Sheet Metal, Inc. and claim(s) 1, 2, 3, 4, 5, 6, 8, 9, 17, 18, 20.

Question No. 13: Indirect Infringement (Contributory Infringement) – Generation 3

Return Air Filter Boxes – Apparatus and Method Claims.

Has Plaintiff proven by a preponderance of the evidence that one or more Defendant contributorily infringed claims 1, 2, 3, 4, 6, 8, 9, 17, and/or 18 of the '029 Patent?

Yes ✓ No

If yes, which Defendant(s) and which claim(s)?

Defendant Von Honnecke and claim(s) 1, 2, 3, 4, 6, 8, 9, 17, 18.

Defendant Chase Honnecke and claim(s) 1, 2, 3, 4, 6, 8, 9, 17, 18.

Defendant S & H Sheet Metal, Inc. and claim(s) 1, 2, 3, 4, 6, 8, 9, 17, 18.

D: INDIRECT INFRINGEMENT – INDUCED INFRINGEMENT

Question No. 14: Indirect Infringement (induced infringement) – Generation 1

Return Air Filter Boxes – Apparatus and Method Claims.

Has Plaintiff proven by a preponderance of the evidence that one or more Defendant induced infringement of claims 1, 2, 3, 4, 5, 6, 8, 9, 17, 18, and/or 20 of the '029 Patent?

Yes ✓ No

If yes, which Defendant(s) and which claim(s)?

Defendant Von Honnecke and claim(s) 17, 18, 20.

Defendant Chase Honnecke and claim(s) 17, 18, 20.

Defendant S & H Sheet Metal, Inc. and claim(s) 17, 18, 20.

Question No. 15: Indirect Infringement (induced infringement) – Generation 2

Return Air Filter Boxes – Apparatus and Method Claims.

Has Plaintiff proven by a preponderance of the evidence that one or more Defendant induced infringement of claims 1, 2, 3, 4, 5, 6, 8, 9, 17, 18, and/or 20 of the '029 Patent?

Yes ✓ No

If yes, which Defendant(s) and which claim(s)?

Defendant Von Honnecke and claim(s) 17, 18, 20.

Defendant Chase Honnecke and claim(s) 17, 18, 20.

Defendant S & H Sheet Metal, Inc. and claim(s) 17, 18, 20.

Question No. 16: Indirect Infringement (induced infringement) – Generation 3

Return Air Filter Boxes – Apparatus and Method Claims.

Has Plaintiff proven by a preponderance of the evidence that one or more Defendant induced infringement of claims 1, 2, 3, 4, 6, 8, 9, 17, and/or 18 of the '029 Patent?

Yes ✓ No

If yes, which Defendant(s) and which claim(s)?

Defendant Von Honnecke and claim(s) 17, 18.

Defendant Chase Honnecke and claim(s) 17, 18.

Defendant S & H Sheet Metal, Inc. and claim(s) 17, 18.

E. WILLFULNESS

Question No. 17:

If you found that one or more Defendants infringed any claims of the '029 Patent in Question Nos. 1-16 above, has Plaintiff proven by a preponderance of the evidence that any or all of such Defendants' infringement was willful?

Yes ✓ No

If yes, which Defendant(s) willfully infringed? (check whom you find acted willfully)

Defendant Von Honnecke: ✓

Defendant Chase Honnecke:

Defendant S & H Sheet Metal, Inc.:

III. FINDINGS ON DAMAGES

If you found for Plaintiff on any of its claims for infringement of the '029 patent, proceed to answer the damages questions below and, only after, then proceed to answer the questions under the Findings on Invalidity.

If you did not find for Plaintiff on any of its claims for infringement of the '029 patent, do not answer the remaining damages questions. Still, however, please proceed to answer the questions under the Findings on Invalidity.

(1) Lost profits:

If you found for Plaintiff on any of its claims for patent infringement, do you find that Plaintiff has proven by a preponderance of the evidence that it is entitled to lost profits?

Yes ☒ No ☒ AB

If yes, what is the amount of lost profits recoverable by Plaintiff (in Dollars)?

\$ 475,000.00

(2) Reasonable royalty:

(a) What do you find is the reasonable royalty rate per unit due to compensate Plaintiff for the damage caused by Defendants' infringement?

(b) What do you find is the total number of infringing units sold by Defendants? _____

(c) What do you find is the monetary value of the reasonable royalty?

IV. FINDINGS ON INVALIDITY

The questions regarding invalidity should be answered regardless of your findings on infringement and damages.

A: ANTICIPATION

Have Defendants proven it is highly probable that claims 1, 2, 3, 4, 5, 6, 8, 9, 17, 18, and/or 20 of the '029 patent is invalid as anticipated (not new)?

Yes _____ No ☒ _____.

If "Yes", which claim(s): _____

B. OBVIOUSNESS

The ultimate conclusion that must be reached on the obviousness question is whether Defendants have proven that it is highly probable that the claimed invention would have been obvious to a person of ordinary skill in the field at the time the patent application was filed. In order to properly reach a conclusion, the following preliminary questions must be answered:

A. What was the level of ordinary skill in the field that someone would have had at the time the claimed invention was made? (check one applicable answer)

☒ Education or experience in heating, ventilation, and air conditioning, and with installing furnace filter boxes to furnaces in residential or commercial buildings

☐ Experience in sheet metal fabrication in the field of heating, ventilation, and air conditioning.

Enter how many years of education or experience in the matter checked above?

4 year(s).

B. Were the following within the scope and content of the prior art at the time of the claimed invention? Check the reference only if was within the scope and content of the prior art.

☐ SMITH & WILLS furnace filter box;

☐ Gustafson sheet metal furnace filter boxes, uses, and installations.

☐ U.S. Pat. Ser. No. 6,260,815 to Allen.

☒ Prior use in sectioning the U shaped Pittsburgh box, adjusting vertical height and reattaching the sidewalls.

C. Do you find any of the following “secondary considerations” exists (check all that apply):

☒ Whether the invention was commercially successful as a result of the merits of the claimed invention (rather than the result of design needs or market-pressure advertising or similar activities);

☐ Whether the invention satisfied a long-felt need;

☐ Whether others had tried and failed to make the invention;

☐ Whether others invented the invention at roughly the same time;

☒ Whether others copied the invention;

☒ Whether there were changes or related technologies or market needs contemporaneous with the invention;

☐ Whether the invention achieved unexpected results;

☒ Whether others in the field praised the invention;

☒ Whether persons having ordinary skill in the art of the invention expressed surprise or disbelief regarding the invention;

☐ Whether others sought or obtained rights to the patent from the patent holder;

☐ Whether the inventor proceeded contrary to accepted wisdom in the field.

After consideration of the answers to the preliminary questions above, do you find that Defendants have proven that it is highly probable that any asserted claims of the '029 patent would have been obvious to a person of ordinary skill in the field at the time the patent application was filed?

Yes _____ No ☒ _____

If "Yes", which claim(s): _____

You have now reached the end of the verdict form and should review it to ensure it accurately reflects your unanimous determinations. Please sign and date the verdict form in the spaces below and notify the courtroom deputy or court security officer that you have reached a verdict. The presiding juror should retain possession of the verdict form and bring it when the jury is brought back into the courtroom.

Date: 2/15/19

